



U.S. Department  
of Transportation

**Pipeline and Hazardous  
Materials Safety  
Administration**

**February 25, 2022**

1200 New Jersey Avenue, SE  
Washington, DC 20590

DOT-SP 10180  
(NINETEENTH REVISION)

**EXPIRATION DATE: 2025-08-31**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: USSC Acquisition Corp. d.b.a. Fireboy-Xintex  
Grand Rapids, MI
2. PURPOSE AND LIMITATIONS:
  - a. This special permit authorizes the manufacture, marking, sale and use of DOT specification cylinders, except they are equipped with pressure relief device systems other than as prescribed by the Hazardous Materials Regulations (HMR), to be used for the transportation in commerce of certain Division 2.2 materials. In addition, DOT Specification 4B and 4BW cylinders described herein may be transported as fire extinguishers in accordance with § 173.309(a). This special permit provides no relief from the HMR other than as specifically stated herein. The most recent revision supersedes all previous revisions.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
  - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packaging may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.304a(a)(2) in that the prescribed packagings are not authorized except as specified herein; and §§ 180.205 and 178.35(e) in that pressure relief device systems other than as prescribed by the HMR are not authorized except as specified herein.
5. BASIS: This special permit is based on the application of FireBoy-Xintex LLC dated September 14, 2021 and submitted in accordance with § 107.109 and additional information dated January 26, 2022.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Hazardous Materials Description                                    |                           |                       |               |
|--------------------------------------------------------------------|---------------------------|-----------------------|---------------|
| Proper shipping name                                               | Hazard Class/<br>Division | Identification Number | Packing Group |
| Bromotrifluoromethane <i>or</i> Refrigerant gas, R 13B1            | 2.2                       | UN1009                | N/A           |
| 1-Chloro-1,2,2,2-tetrafluoroethane <i>or</i> Refrigerant gas R 124 | 2.2                       | UN1021                | N/A           |
| Fire extinguishers <i>containing compressed or liquefied gas</i> * | 2.2                       | UN1044                | N/A           |
| Heptafluoropropane <i>or</i> Refrigerant gas R 227                 | 2.2                       | UN3296                | N/A           |

\*Note: The use of the proper shipping name, Fire extinguisher, is only authorized for materials and cylinders that meet § 173.309(a)(1) through (a)(4).

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

a. PACKAGINGS: Packagings prescribed are DOT Specification 39, 4B240, 4B360, 4BW360 and 4BW500 cylinders equipped with a pressure relief system in accordance with Consolidated Marine Products, Inc.'s drawings and specifications on file with the Office of Hazardous Materials Safety (OHMS). The pressure relief system is actuated by a fusible metal strut or a glass bulb sensor. The pressure relief system must function:

- (1) at a temperature no greater than 212 °F.; and
- (2) at a pressure no greater than 80 percent of the cylinder's minimum burst pressure.

b. TESTING: Each DOT Specification 4B and 4BW cylinder must be retested and reinspected as specified in § 180.205.

c. OPERATIONAL CONTROLS:

- (1) The maximum permitted filling density is 125 percent (75 pounds/cubic foot).
- (2) The maximum charge pressure may not exceed that specified in § 173.301(f).

(3) Cylinders must be shipped in strong outside packaging in accordance with § 173.301(a)(9), as applicable.

(4) Bromotrifluoromethane must be transported in DOT Specification 39 cylinders. DOT Specification 4B or DOT 4BW cylinders are not authorized for Bromotrifluoromethane.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modifications or changes are made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Safety for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

f. MARKING: Each cylinder and the outside packaging must be marked "DOT-SP 10180".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo-only aircraft, and passenger-carrying aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or aircraft used to transport the cylinders authorized by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

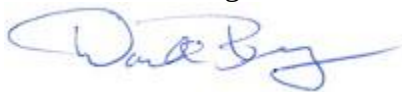
Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover  
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-13.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search> Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae